

CRIME SCENE DO NOT CROSS

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| Rec. No.                                                                                          | Recommendation                                                                                                                                                                                                     | Action                                                                                                                                                                                                 | Indicator                                                                                                                                                                                                                                                                                   |
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| 142.1<br>142.2<br>142.3<br>142.4<br>142.5<br>142.6<br>142.7<br>142.8<br>142.9<br>142.10<br>142.11 | Ratify the Optional Protocol to the Convention on the Rights of the Child (CRC) on the sale of children, child prostitution and child pornography to strengthen and harmonize existing national laws and policies. | Take steps towards the ratification of the OP II CRC on the sale of children, child prostitution and child pornography.                                                                                | <ul style="list-style-type: none"> <li>• Cabinet memorandum on the ratification of the OP II CRC prepared and signed.</li> </ul>                                                                                                                                                            |
| 142.12                                                                                            | Consider ratifying the Second Optional Protocol to the International Covenant on Civil and Political Rights, aiming at the abolition of the death penalty.                                                         | Review all laws and policies touching on the rights of children to be in line with the OP II CRC including Children's Act, Sexual Offences Act, Counter Trafficking in Persons Act among others.       | <ul style="list-style-type: none"> <li>• Children's Act Reviewed</li> <li>• Sexual Offences Act Reviewed</li> <li>• and Sexual Offences policy adopted.</li> </ul>                                                                                                                          |
| 142.13<br>142.14<br>142.15<br>142.16<br>142.17<br>142.18<br>142.19<br>142.20<br>142.22            | Consider ratifying the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment.                                                                          | Take steps towards the ratification of the Second Optional Protocol to the ICCPR through undertaking of public sensitization forums on the abolition of death penalty.                                 | <ul style="list-style-type: none"> <li>• No. of stakeholders sensitized on the Second Optional Protocol to the ICCPR.</li> </ul>                                                                                                                                                            |
| 142.13<br>142.14<br>142.15<br>142.16<br>142.17<br>142.18<br>142.19<br>142.20<br>142.22            | Consider ratifying the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment.                                                                          | Take steps towards ratifying the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment through undertaking of public sensitization forums. | <ul style="list-style-type: none"> <li>• Advisory opinion prepared.</li> <li>• No. of stakeholders sensitized in the counties.</li> </ul>                                                                                                                                                   |
| 142.49<br>142.52                                                                                  | Continue with the Security Sector reforms to enable police to effectively protect and respect human rights.                                                                                                        | Undertake security sector reforms to enable police to protect and respect human rights.                                                                                                                | <ul style="list-style-type: none"> <li>• Number of police stations with an operational digitized OB.</li> <li>• Finalize the development of guidelines on the use of force, firearms, and public order management.</li> </ul>                                                               |
|                                                                                                   |                                                                                                                                                                                                                    | Strengthen Accountability Mechanisms in the security sector.                                                                                                                                           | <ul style="list-style-type: none"> <li>• No. of officers awarded for respected of human rights.</li> <li>• No of complaints lodged by the public.</li> <li>• No. of cases investigated, prosecuted, and convicted.</li> <li>• No. of disciplinary cases commenced and concluded.</li> </ul> |

| Rec. No.                                                                                                           | Recommendation                                                                                                                                                                                       | Action                                                                                                                                                                                                                                                                                                                                                   | Indicator                                                                                                                                                                                                                                                                                                                                                                                            |
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| 142.50                                                                                                             | Continue with the public sector reforms in order to respect and protect all human rights.                                                                                                            | Undertake public sector reform to uphold respect for human rights.                                                                                                                                                                                                                                                                                       | <ul style="list-style-type: none"> <li>• Number of officers trained on human rights-based approach to service delivery.</li> <li>• Number of reports on compliance of human rights standards in service delivery.</li> </ul>                                                                                                                                                                         |
| 142.141<br>142.147                                                                                                 | Further enhance civilian oversight over the Police Service by thoroughly implementing the IPOA Act of 2011.                                                                                          | <p>Take steps towards the ratification of the Second Optional Strengthen IPOA, National Police Service and ODPP to investigate serious human rights violations committed by police officers. Protocol to the ICCPR through undertaking of public sensitization forums on the abolition of death penalty.</p> <p>Allocate adequate resources to IPOA.</p> | <ul style="list-style-type: none"> <li>• Standard Operating Procedures (SOPs) on Investigation and Prosecution of Serious Human Rights Violations Committed by Police Officers implemented.</li> <li>• Amount of funds allocated in a financial year.</li> </ul>                                                                                                                                     |
| 142.55                                                                                                             | Strengthen training and awareness programmes for State officials in the field of human rights for the effective implementation of the law on prevention of torture.                                  | Undertake training and create awareness on prevention of torture among state officials and law enforcement officers.                                                                                                                                                                                                                                     | <ul style="list-style-type: none"> <li>• No. of stakeholders trained on the Prevention of Torture Act.</li> </ul>                                                                                                                                                                                                                                                                                    |
| 142.91<br>142.92<br>142.94<br>142.137<br>142.138<br>142.140<br>142.142<br>142.144<br>142.145<br>142.146<br>142.148 | Prevent torture and impunity through full implementation of the National Coroners Service Act 2017 and the Prevention of Torture Act 2017, including an evaluation tool to monitor progress.         | <p>Implement the National Coroners Service Act, 2017.</p> <p>Undertake a study to understand the challenges of implementation of the Prevention of Torture Act, 2017 and how the same can be addressed.</p> <p>Investigate and Prosecute Torture Cases.</p>                                                                                              | <ul style="list-style-type: none"> <li>• The National Coroner's Service Act operationalized.</li> <li>• Study Report.</li> <li>• Sensitize police on how to identify torture cases Number of cases investigated and prosecuted for the Offence of Torture.</li> </ul>                                                                                                                                |
| 142.157                                                                                                            | Take further measures towards ensuring the safety of journalists, as well as towards guaranteeing the freedoms of expression, press, association, and peaceful assembly.                             | Undertake activities that promote safety of journalists.                                                                                                                                                                                                                                                                                                 | <ul style="list-style-type: none"> <li>• Number of cases investigated and prosecuted.</li> <li>• Number of officers trained on proper public order management.</li> <li>• No. of stakeholders trained on proper public order management.</li> </ul>                                                                                                                                                  |
| 142.139<br>142.143<br>142.153<br>142.154<br>142.158                                                                | Ensure transparent and effective investigations in cases where human rights defenders have been harmed and adopt a law protecting human rights defenders in accordance with international standards. | Investigate attacks against human rights defenders and journalists.                                                                                                                                                                                                                                                                                      | <ul style="list-style-type: none"> <li>• Number of cases investigated and prosecuted.</li> </ul>                                                                                                                                                                                                                                                                                                     |
| 142.176                                                                                                            | Ensure that surveillance and profiling of citizens respect the right to privacy including judicial oversight.                                                                                        | Put in place safeguards to ensure that surveillance and profiling of citizens respects human rights.                                                                                                                                                                                                                                                     | <ul style="list-style-type: none"> <li>• No. of safeguards (e.g., Guidelines, Regulations, Manuals) in place for the protection of citizen's right to privacy.</li> </ul>                                                                                                                                                                                                                            |
| 142.76<br>142.77<br>142.78<br>142.79<br>142.80<br>142.151<br>142.152<br>142.246                                    | Step up efforts to combat terrorism.                                                                                                                                                                 | <p>Develop strategies to counter terrorism and radicalization.</p> <p>Step up efforts to eliminate the political marginalization of children and youth who belong to the minority communities such as Muslims or the Somali ethnic group.</p> <p>Ensure that counter terrorism measures conform with law and international human rights standards.</p>   | <ul style="list-style-type: none"> <li>• Number of initiatives on counter terrorism developed and implemented.</li> <li>• No. of community dialogue forums held with affected communities.</li> <li>• Number of police officers trained on human rights standards in combating counter terrorism.</li> <li>• Number of cases on terrorism and radicalization investigated and prosecuted.</li> </ul> |

| Rec. No.                                                                             | Recommendation                                                                                                                                                                                                                   | Action                                                                                                                                                                                                                                                                                                                   | Indicator                                                                                                                                                                                                                                                                                                                                                                                                     |
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| 142.84<br>142.85<br>142.86<br>142.87<br>142.88<br>142.89                             | Continue taking steps to abolish the death penalty.                                                                                                                                                                              | Undertake steps towards abolishing of the death sentence including carrying out sensitization forums and public surveys.                                                                                                                                                                                                 | <ul style="list-style-type: none"> <li>Public Survey Report on abolition of the Death Penalty.</li> </ul>                                                                                                                                                                                                                                                                                                     |
| 142.90                                                                               | Continue the efforts to put an end to extra-judicial killings by police officers, including in the context of counterterrorism measures.                                                                                         | Develop strategies to end extra judicial killings by police including within the context of counter terrorism.                                                                                                                                                                                                           | <ul style="list-style-type: none"> <li>Number of officers prosecuted and convicted for extra judicial killings.</li> <li>Guidelines on use of force, firearms and public order management developed.</li> </ul>                                                                                                                                                                                               |
| 142.130                                                                              | Set up specialized courts that enable the speeding up and the effective treatment of gender-based violence cases.                                                                                                                | Commence stakeholders engagements on the establishment of specialized courts to deal with SGBV.                                                                                                                                                                                                                          | <ul style="list-style-type: none"> <li>Concept Paper developed and disseminated.</li> <li>No. of stakeholder forums held.</li> </ul>                                                                                                                                                                                                                                                                          |
| 142.68<br>142.69<br>142.70<br>142.71<br>142.72                                       | Continue efforts aimed at fighting corruption as well as illicit financial flows and tax avoidance.                                                                                                                              | Put in place measures to fight corruption, illicit financial flows, and tax avoidance.                                                                                                                                                                                                                                   | <ul style="list-style-type: none"> <li>National Ethics and Anti-Corruption Policy Implemented.</li> <li>No. of Assets recovered from Corruption.</li> </ul>                                                                                                                                                                                                                                                   |
| 142.150                                                                              | Ensure that the right to freedom of religion or belief is fully protected and promoted.                                                                                                                                          | Protect freedom of religion through the creation of an enabling environment.                                                                                                                                                                                                                                             | <ul style="list-style-type: none"> <li>Moratorium on registration of Religious Institutions Lifted No. of religious institutions registered.</li> <li>Rules for religious societies developed and finalized.</li> </ul>                                                                                                                                                                                       |
| 142.149<br>142.135                                                                   | Implement the recommendations made by the Truth, Justice, and Reconciliation Commission, including investigating and punishing those responsible for serious human rights violations as well as providing remedy to the victims. | Ensure reparations for victims of human rights violations through development of a policy on reparations.                                                                                                                                                                                                                | <ul style="list-style-type: none"> <li>Reparations Policy Developed.</li> </ul>                                                                                                                                                                                                                                                                                                                               |
| 142.176                                                                              | Ensure that surveillance and profiling of citizens respect the right to privacy including judicial oversight.                                                                                                                    | Put in place safeguards to ensure that surveillance and profiling of citizens respects human rights.                                                                                                                                                                                                                     | <ul style="list-style-type: none"> <li>No. of safeguards (e.g., Guidelines, Regulations, Manuals) in place for the protection of citizen's right to privacy.</li> </ul>                                                                                                                                                                                                                                       |
| 142.170<br>142.171<br>142.172<br>142.173<br>142.174<br>142.175<br>142.229<br>142.258 | Accelerate efforts to combat trafficking in persons.                                                                                                                                                                             | <p>Increase efforts to combat trafficking in persons through creation of an enabling environment and by providing sufficient protection for victims of trafficking.</p> <p>Prosecute perpetrators of trafficking in persons.</p>                                                                                         | <ul style="list-style-type: none"> <li>Standard Operating Procedures to aid in the identification, investigation and prosecution of traffickers developed.</li> <li>National Action Plan for Combatting Human Trafficking Reviewed.</li> <li>Sexual Offences Policy adopted.</li> <li>Counter Trafficking in Persons Act, 2010 reviewed.</li> <li>Number of perpetrators prosecuted and convicted.</li> </ul> |
| 142.136<br>142.168                                                                   | Intensify efforts to secure redress for survivors of sexual violence following 2007 and 2017 Presidential elections and establish mechanisms to ensure such crimes are never repeated.                                           | <p>Provide redress for survivors of SGBV following 2007 and 2017 Presidential elections.</p> <p>Enhance capacity of security agencies to prevent, combat, report and investigate SGBV cases and other election offences during and after elections.</p> <p>Establish Joint Election Security Coordination Framework.</p> | <ul style="list-style-type: none"> <li>No. of victims who have received compensation and psychosocial support.</li> <li>No. of law enforcement officers who have received training.</li> <li>No. of One stop GBV Centers established.</li> <li>Joint Election Security Coordination Framework established.</li> </ul>                                                                                         |

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| 142.155                       | Implement the recommendations of the 2017 EU Election Observation Mission, especially to strengthen the independence of the media and journalists and to provide protection for civil society.                             | Implement recommendations of 2017 EU Election Observation Mission on strengthening independence of media and journalists and protection of civil society.                                                                                                                | • Recommendations Implemented.                                                        |
| 142.167<br>142.169            | Ensure that all human rights are duly respected and protected in the run up to and during the coming general elections in 2022.                                                                                            | Fully Implement the 2021 IEBC Elections Operations Plan.                                                                                                                                                                                                                 | • The IEBC Elections Operations Plan Implemented.                                     |
|                               |                                                                                                                                                                                                                            | Prosecute violators of human rights in the run up to, during and after the 2022 general elections.                                                                                                                                                                       | • No. of Cases prosecuted.                                                            |
| 142.134                       | Combat hate speech, particularly during election periods, and punish incitements to racial or ethnic hatred.                                                                                                               | Combat hate speech during elections through conducting public awareness campaigns directed at voter and civic education, issue-based campaigns, inter-group dialogue and tolerance with a specific focus on hate speech and incitement to hatred in electoral campaigns. | • No. of stakeholders trained.                                                        |
| 142.133                       | Continue to prosecute acts of racial discrimination and hate speech and adopt a comprehensive strategy to eliminate harmful cultural practices.                                                                            | Investigate and Prosecute Cases on Racial Discrimination and Hate Speech.                                                                                                                                                                                                | • No. of cases investigated and prosecuted.                                           |
| 142.125                       | Prohibit corporal punishment in schools and public institutions.                                                                                                                                                           | Enforce laws prohibiting corporal punishment in schools.                                                                                                                                                                                                                 | • No. of disciplinary cases against Teachers reported and addressed.                  |
|                               |                                                                                                                                                                                                                            | Encourage the use of alternative discipline measures in schools and other institutions.                                                                                                                                                                                  | • Alternative discipline measures guidelines developed.                               |
| 142.261                       | Implement a comprehensive birth registration program in order to prevent minorities from having limitations on the right to nationality.                                                                                   | Implement a universal comprehensive Birth Registration program especially targeting minority and stateless persons.                                                                                                                                                      | • No. of minority and stateless persons registered at birth.                          |
|                               |                                                                                                                                                                                                                            | Digitization of birth and death register.                                                                                                                                                                                                                                | • Finalized automation of the birth and death register.                               |
| 142.244                       | Implement the provisions of the Convention on the Rights of the Child.                                                                                                                                                     | Implement the recommendations to Kenya's 2nd-5th periodic state report on the CRC by the Committee on the Rights of the Child.                                                                                                                                           | • Percentage of recommendations Implemented.                                          |
| 142.27                        | Finalize the adoption processes of the draft bills on children, mental health, and persons with disabilities.                                                                                                              | Finalize and Submit the Children mental health, and persons with disabilities Bill to Parliament.                                                                                                                                                                        | • The Children's Bill submitted to Parliament for Approval.                           |
| 142.229<br>142.250<br>142.256 | Continue the fight against discrimination and violence against women and children, including trafficking, forced labour and domestic abuse as well as improve reporting and bringing to justice perpetrators of such acts. | Implement the National Prevention and Response Plan on Violence against Children (2019-2023).                                                                                                                                                                            | • The National Prevention and Response Plan on Violence against Children implemented. |
|                               |                                                                                                                                                                                                                            | Implement the recommendations of Violence against Children (VAC) Survey Report 2019.                                                                                                                                                                                     | • Implemented recommendations of the VAC Survey.                                      |
|                               |                                                                                                                                                                                                                            | Prosecute the perpetrators of violence against women and children.                                                                                                                                                                                                       | • No. of cases prosecuted.                                                            |
|                               |                                                                                                                                                                                                                            | Training of law enforcement personnel and local authorities in rural and coastal regions, on identifying, investigating, and managing trafficking cases.                                                                                                                 | • No of personnel trained.                                                            |
|                               |                                                                                                                                                                                                                            | Implement the national strategy on disability mainstreaming.                                                                                                                                                                                                             | • Percentage of implementation of the National strategy on disability mainstreaming.  |

| Rec. No.                                                                                                                                                                                                                                                                                        | Recommendation                                                                                                                             | Action                                                                                                       | Indicator                                                                                                                                                                                  |
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| 142.235                                                                                                                                                                                                                                                                                         | Increase efforts to prevent and combat sexual and gender-based violence, including in camps for internally displaced persons and refugees. | Create gender sensitive reporting mechanisms in refugee camps.                                               | <ul style="list-style-type: none"> <li>• GBV reporting mechanism in place.</li> <li>• Number of GBV cases reported to the Police.</li> </ul>                                               |
| 142.118<br>142.119<br>142.120<br>142.121<br>142.122<br>142.123<br>142.124                                                                                                                                                                                                                       | Redouble efforts to promote and protect the rights of people with albinism by creating support centers dedicated to this cause.            | Take additional measures to combat discrimination, stigma, and attacks against people with albinism.         | <ul style="list-style-type: none"> <li>• Number of Cases prosecuted.</li> <li>• Number of stakeholders trained and sensitized on non-discrimination of persons with albinism.</li> </ul>   |
| 142.95<br>142.96<br>142.97<br>142.98<br>142.99<br>142.100<br>142.101<br>142.102<br>142.103<br>142.104<br>142.105<br>142.106<br>142.107<br>142.108<br>142.109<br>142.110<br>142.111<br>142.112<br>142.114<br>142.115<br>142.116<br>142.117<br>142.133<br>142.115<br>142.117<br>142.133<br>142.64 | Make an effort to implement existing legislation to end female genital mutilation.                                                         | Prosecute all perpetrators of FGM including medical doctors.<br>Disseminate the National Policy on Anti FGM. | <ul style="list-style-type: none"> <li>• Number of cases reported, prosecuted, and convictions obtained.</li> <li>• No of people sensitized on the National Policy on Anti FGM.</li> </ul> |
|                                                                                                                                                                                                               |                                                                                                                                            |                                                                                                              |                                                                                                                                                                                            |